CITY ATTORNEY'S IMPARTIAL ANALYSIS OF MEASURE A

State law requires general law cities, including the City of Morgan Hill, to have a City Treasurer. The position may be elected or appointed. In Morgan Hill, voters currently elect the City Treasurer every four years. The current City Treasurer's term ends in 2028.

If this measure is approved, the City Treasurer would become an appointed position upon expiration of the current Treasurer's term in 2028, or earlier if a vacancy occurs. If the measure is approved, the City Manager would appoint the City Treasurer, based on their experience and ability.

Under state law, an elected City Treasurer must be at least 18 years old, reside in the city, and be registered to vote in the city. There are no minimum educational or professional qualifications for the elected position.

The City Treasurer is responsible for overseeing the City's treasury functions, including the collection and safeguarding of City funds. The City's Finance Director and Finance Department currently perform most day-to-day treasury operations, including banking, investments, accounting, debt management, and financial reporting. The City's financial operations are also subject to internal controls and independent audits.

If the measure is approved, the city estimates savings of approximately $40,000 annually in personnel costs and approximately $15,000 in election costs every four years.

A "yes" vote on Measure A will make the City Treasurer position appointive.

A "no" vote on Measure A means the City Treasurer will continue to be elected by the voters.

/s/ [City Attorney]
Elisa Tolentino